

GLOBAL KINGS LOGISTICS/
KAMORDEEN A. GANIU,
Complainant,

v.

MEDITERRANEAN SHIPPING COMPANY
(USA) INC. AND MSC MEDITERRANEAN
SHIPPING COMPANY S.A.

Respondents.

Respondents Mediterranean Shipping Company (USA) Inc. (“MSC USA”) and MSC Mediterranean Shipping Company S.A. (“MSC S.A.”) (Together, “Respondents” or “MSC”) hereby answer the Verified First Amended Complaint (“Complaint”) filed by Global Kings Logistics/Kamordeen A. Ganiu (“Complainant” or “Global Kings”) as follows:

1. Admit.
2. Admit.
3. Admit.
4. This paragraph merely characterizes the Complaint, which speaks for itself, and thus requires no response.

5. Lacks sufficient information to admit or deny the information in this paragraph.

6. Lacks sufficient information to admit or deny the information in this paragraph.

7. Admit.

8. Admit the second sentence. The first, third, and fourth sentences state conclusions of law and/or merely characterize the Complaint and thus require no response.

III. JURISDICTION AND LEGAL AUTHORITY

9. This paragraph states conclusions of law which require no response.

10. This paragraph states conclusions of law which require no response.

11. Admit the first sentence. The second sentence states conclusions of law which require no response.

IV. PARTICULARIZED FACTUAL ALLEGATIONS

12. Admit.

13. Admit.

14. Admit.

15. Admit.

16. Admit.

17. Admit.

18. This paragraph merely characterizes the Complaint, which speaks for itself, and thus requires no response.

19. Admit that the August 1, 2024 invoice includes three bill-of-lading numbers, three container numbers, port of discharge, invoice date, and demurrage amounts.

20. Admit, but deny that container availability date was required for this invoice.

21. Admit.

22. Admit.

23. Admit.

24. Admit.

25. Lacks sufficient information to admit or deny the information in this paragraph.

26. Admit the first sentence. Deny that a bill of lading is required to include the information in the second sentence.

27. Admit.

28. Admit.

29. This paragraph merely characterizes the Complaint and/or states conclusions of law and thus requires no response.

V. CLAIMS FOR RELIEF

COUNT I

30. No response required.

31. Section 41104(a)(15) speaks for itself. Section 41104(f) speaks for itself.

32. This paragraph states conclusions of law which require no response. Section 541.5 speaks for itself.

33. Admit.

34. Admit the information was omitted, but deny it was required.

35. Denied.

COUNT II

36. No response required.

37. Section 41104(a)(14) speaks for itself.

38. Admit charges were assessed and pursued, but deny remainder of this paragraph.

39. Admit.

COUNT III

40. No response required.

41. Section 41102(c) speaks for itself.

42. Deny there was any pattern of conduct. Deny omitted information was required. Deny charges were noncompliant, but admit the charges were folded into a combined account balance. Admit collection of the combined balance was pursued. Lacks sufficient information to admit or deny allegations with respect to Global Kings Logistics, Inc.

43. No response required.

44. Admit.

45. This paragraph merely characterizes the Complaint and thus requires no response.
46. This paragraph merely characterizes the Complaint and thus requires no response.

VII. RELIEF REQUESTED

47. Admit this paragraph states the relief requested, but deny Complainant is entitled to such relief.
48. Admit this paragraph states the relief requested, but deny that Complainant is entitled to such relief.
49. Admit this paragraph states the relief requested, but deny that Complainant is entitled to such relief.
50. Admit this paragraph states the relief requested, but deny that Complainant is entitled to such relief.
51. Admit this paragraph states the relief requested, but deny that Complainant is entitled to such relief.
52. Denied, as discovery is not a form of relief.
53. This paragraph requires no response but, to the extent it does, deny that Complainant is entitled to any relief.
54. No response required.

IX. Affirmative Defenses

1. The Federal Maritime Commission lacks personal jurisdiction over MSC USA.
2. Complainant fails to state a claim for which relief can be granted.
3. Complainant failed to take reasonable steps to mitigate its damages.
4. MSC's conduct did not constitute a practice.
5. MSC's conduct was neither unjust nor unreasonable.
6. Complainant failed to plead essential elements of the claim under 46 U.S.C. § 41102(c).
7. MSC's conduct was not the proximate cause of Complainant's alleged injuries.
8. Complainant's own misconduct was the source of the charges now being challenged.
9. Complainant is estopped from challenging the lawfulness of the charges.
10. Complainant's claim is barred by the doctrine of "unclean hands."

11. The invoice requirements relied on by Complainant do not and should not apply in the factual circumstances of this case.
12. Complainant fails to state a claim under 46 U.S.C. §§ 41104(a)(14) and 41104(a)(15) for which the Federal Maritime Commission has authority to award reparations.
13. Complainant has not suffered any actual injury or damage as a result of Respondent's alleged violations of the Shipping Act.

**VERIFICATION OF RESPONDENT
MSC MEDITERRANEAN SHIPPING COMPANY S.A.**

Paolo Magnani hereby verifies as follows:

1. I am Executive Vice President of MSC Mediterranean Shipping Company (USA) Inc. agent of Mediterranean Shipping Company S.A.
2. I am authorized to make this verification as agent of MSC Mediterranean Shipping Company S.A.
3. I hereby verify that the facts contained in the foregoing Answer and affirmative defenses are true and correct to the best of my knowledge, information, and belief.
4. I verify the foregoing under penalty of perjury under the laws of the United States.

Dated: 09/21/26

PAOLO MAGNANI

Name: Paolo Magnani
Title: Executive Vice President

**VERIFICATION OF RESPONDENT
MEDITERRANEAN SHIPPING COMPANY (USA) INC.**

Paolo Magnani hereby verifies as follows:

1. I am Executive Vice President of Mediterranean Shipping Company (USA) INC.
2. I am authorized to make this verification on behalf of Mediterranean Shipping Company (USA) INC.
3. I hereby verify that the facts contained in the foregoing Answer and affirmative defenses are true and correct to the best of my knowledge, information, and belief.
4. I verify the foregoing under penalty of perjury under the laws of the United States.

Dated: 09/21/2026

PAOLO MAGNANI

Name: Paolo Magnani
Title: Executive Vice President

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 22nd day of September 2026, the foregoing Respondents'

Verified Answer was served via electronic mail on:

Kamordeen A. Ganiu
info@gklshipping.com

A handwritten signature in black ink, appearing to read "Rachel Schwartz", with a stylized flourish at the end.

Rachel Schwartz